



POLICE DEPARTMENT

April 28, 2022

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202005664 regarding Police Officer Justin Pichon, Tax No. 959894, and Police Officer Hansel Rocha, Tax No. 954279

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202005664, pertaining to Police Officer Pichon and Police Officer Rocha. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Pichon and Police Officer Rocha would be detrimental to the Police Department's disciplinary process. Rather, the Police Commissioner intends to retain jurisdiction of this matter and to have both officers receive No Disciplinary Action as a result of their underlying conduct.

In this matter, the Civilian Complaint Review Board ("CCRB") substantiated a single force allegation against Police Officer Pichon and a single force allegation against Police Officer Rocha. The CCRB provided video evidence, including cellphone recordings and officers' own Body-Worn Camera footage, to further bolster their findings. However, upon reviewing the provided footage, the Police Commissioner has determined that the actions of Police Officer Pichon and Police Rocha were altogether appropriate given the circumstances.

Police Officer Pichon and Police Officer Rocha were at a scene of a demonstration during which demonstrators elected to block vehicular traffic. In doing so, the demonstrators blocked an emergency vehicle from responding to a priority call for help. This emergency vehicle was assigned to the 1st Precinct, in the confines of which the demonstration in question had occurred, and was not part of the NYPD contingent assigned to the demonstration detail. The emergency vehicle had its emergency lights activated and made every effort to go around the demonstrators who refused to let the vehicle pass.

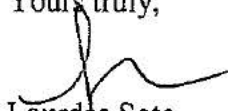
Page 1 of 2

It was at this time that Police Officer Pichon and Police Officer Rocha, together with additional officers, exercised minimal force to disperse the demonstrators—who had by then surrounded the emergency vehicle—away from the street and vehicular traffic. The officers' actions were in direct response to the unlawful actions of the demonstrators who had every opportunity to move out of the way of an emergency vehicle responding to an urgent call for help assignment.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and based on the interests of justice, the Police Commissioner intends to retain jurisdiction over this matter and take no disciplinary action against Police Officer Pichon and Police Officer Rocha.

If you have any questions, please feel free to contact me at § 87(2)(b)

Yours truly,



Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

April 29, 2022

Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

RE: CCRB v. PO Justin Pinchon (Tax #959894, CCRB #202005664) and PO Hansel Rocha (Tax #954279, CCRB #202005664)

Commissioner Sewell:

I am writing in response to the letter from Inspector Soto, dated April 28, 2022, informing the Civilian Complaint Review Board (hereinafter "CCRB") of your intent retain the above referenced cases and not take any disciplinary action with regard to PO Pichon or PO Rocha.

While the Board respects that you are the final arbiter of discipline in this matter, it viewed the evidence in this case differently from you, and requests that you serve the charges against PO Pichon and PO Rocha and allow the disciplinary process to proceed.

Respectfully submitted,

Jonathan Darche

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 2, 2022

Re: CCRB Case No. 202005664 regarding Police Officer Justin Pichon, Tax No. 959894, and
Police Officer Hansel Rocha, Tax No. 954279

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 29, 2022, concerning the CCRB case involving Police Officer Pichon and Police Officer Rocha.

Accordingly, the Police Commissioner maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Pichon and Police Officer Rocha, for the reasons expressed in my April 28, 2022 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Justin Pichon and Police Officer Hansel Rocha receive no disciplinary action in connection with this matter.

If you have any questions, please feel free to contact me at § 87(2)(b)

Yours truly,

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office